

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 23-02

20230930-DK-Butterfly-1, Inc. f/k/a Bed, Bath & Beyond, Inc.

v.

Orient Overseas Container Line Ltd. and OOCL (Europe) Ltd.

STATUS REPORT

Pursuant to the Rules of Practice and Procedure of the Federal Maritime Commission (“Commission” or “FMC”), Respondents Orient Overseas Container Lines Co., Ltd. and OOCL (Europe) Ltd. (“OOCL” or “Respondents”) respectfully submits this Status Report noting developments relevant to the above-captioned proceeding.

On July 16, 2026, the Presiding Officer in Commission Docket No. 23-10, *Bed Bath & Beyond Inc. v. Yang Ming Marine Transport Corp.* issued an Order on Respondent’s Motion to Reopen Record and to Submit Supplemental Information (“Order”). On August 14, 2026, 20230930-DK-Butterfly-1, Inc. f/k/a Bed, Bath & Beyond, Inc. (“Complainant” or “BBBY”), which is the same complainant appearing in the above-captioned proceeding, filed a Response to the Order (hereinafter “Response”).

In its Response, BBBY states, “Of the 501 distinct shipment entries included in this proceeding’s McCown¹ Appendix A-1, all 501 entries had also been included in the 23-02 McCown Appendix B-1.” Response at 2. Further, “...every entry in this proceeding’s Appendix

¹ Mr. John D. McCown appears as Complainant’s Expert Witness in both Docket No. 23-02 and Docket No. 23-10.

A-1 was cross-listed in the 23-02 McCown Appendix B-1...” *Id.* With its Response, BBY submitted additional Appendices A-1(c) through A-4(c). Response at 9. These Appendices are attached hereto as Exhibit 1.

BBY states, “...the NVO/FF shipments from the OOCL case ***are not specific to OOCL and can be used again.***” *Id.* at 4 (emphasis in original).

Finally, the Response states, “...the shipments included in the 23-02 McCown Appendices should not be precluded from supporting an award of reparations for Complainant’s injuries that are the subject of this proceeding against Yang Ming.” *Id.* at 11.

This document appears in the public docket of the Commission as Document No. 75 (available at [https://www2.fmc.gov/readingroom/docs/23-10/\(75\)%2023-10%20Complainant’s%20Response%20to%20the%20Order%20on%20Motion%20to%20Reopen%20Record%20and%20to%20Submit%20Supplemental%20Information.pdf/](https://www2.fmc.gov/readingroom/docs/23-10/(75)%2023-10%20Complainant’s%20Response%20to%20the%20Order%20on%20Motion%20to%20Reopen%20Record%20and%20to%20Submit%20Supplemental%20Information.pdf/)).

Dated: August 19, 2026

Respectfully submitted,

/s/ Keith B. Letourneau
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CERTIFICATE OF SERVICE

I hereby certify on this 19th day of August, 2026, that, pursuant to the rules of the Federal Maritime Commission, that I caused to be served the foregoing document upon Complainant in this proceeding by emailing a copy to its counsel of record appearing below.

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